US: Democrats would use majority to shape AI policy

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【メール原文】

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US: Democrats would use majority to reset terms of AI debate

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Oversight would be the core of Democratic AI policy in the new Congress, but if Democrats win both chambers, they will likely advance legislation to force Republicans onto the record despite the likelihood of a presidential veto.
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Democrats would need to shift from a posture on AI to a policy on AI and would likely converge on a bill modeled on state safety frameworks, while data center taxes and ratepayer protections as well as national security and export controls would likely be early priorities.
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The next six months could well define the AI industry's 2029 regulatory exposure, as Democrats would use their likely congressional majority to hone their approach to AI before the 2028 campaign begins.

Democrats would prioritize AI politics over AI policy at first. Democratic lawmakers would use their control of one or both chambers of Congress (90% odds in the House, 60% in the Senate) to conduct oversight, introduce messaging bills, and develop their approach through bill-writing at the committee level. Hearings critical of the administration's approach to AI safety, chip export deals, and the impacts of data centers would build the record and cast President Donald Trump's administration and AI CEOs as political foils.

The objective would be to position Democrats as reining in the industry's excesses, leaving firms squeezed between the administration and Congress. Subpoenaed safety reports, lobbying records, and data center power terms would enter the public record. Messaging bills would lean into AI as a wedge issue, and floor votes would put Republicans on the record.

Committee chairs, not the progressive wing, would write Democratic AI bills. Committee gavels would go to more senior members who predate the left-wing wave, and those members have already been drafting AI legislation. The left bloc is politically influential, but it would have a hard time translating that influence into the policy sphere, especially in the presence of a larger majority that dilutes its share of the Democratic caucus. The progressive wing's main role would be to set the bounds of AI legislation, but the architecture would be a framework moderated across the party, not one built on prohibitions such as the pause proposed by Senator Bernie Sanders (I-VT) and Representative Greg Casar (D-TX). The central role that committee chairs will occupy in this process means that the party won't resolve internal disagreements over policy; rather, committee chairs will steamroll them.

Democratic legislation would likely follow models from California and New York. As Democrats move their political strategy forward, they would largely settle internal AI policy disagreements in 2027. Either a Republican Senate or the White House would stop meaningful legislation, but hashing out policy disagreements now would force Republicans to take a position while setting the stage for the 2028 presidential campaign and a potential Democratic White House. The center-left is focused on consumer welfare, safety, and affordability, while progressives go as far as calling for complete moratoriums on data center buildout and AI development. A smaller but influential establishment wing sympathetic to business and national security interests wants safeguards that maintain competitiveness.

Across these camps, Democrats would likely push for guardrails such as mandatory testing for frontier models and liability rules that clarify who is responsible for AI outputs, behaviors, and harms. They would also likely craft a national framework for frontier AI safety and disclosure similar to those in California and New York, though they would only support preemption with a federal bill that sets a high enough floor for safety-conscious members.

The framework released by Senator Maria Cantwell (D-WA), the top Democrat on the Commerce Committee, would be particularly influential. With Republicans unlikely to institute a federal preemption on state AI laws in the lame-duck session of Congress, the lack of a federal floor would give Democratic drafters the impetus to field concrete bills. Chairs would borrow from other proposals and attempt to find areas of agreement on issues such as preemption, liability, and scope. As a result, comprehensive AI safety legislation would develop slowly.

Democrats would legislate quickly where bipartisan agreement already exists. Democratic hawks and Republican China hawks agree on export controls and restrictions on frontier model access, and both support bills limiting the sale of AI chips to China, though even bipartisan legislation could face a veto. The annual defense authorization already has similar proposals this year. Other areas of common ground include child safety, workforce protections, and conditions on data centers, such as ratepayer protections, all of which have some bipartisan support.

The 2027 framework would be the policy blueprint for the Democratic candidate in 2028. We expect the congressional framework that would emerge to become Democratic policy, with consensus positions becoming the base case for the 2028 campaign and bills drafted in the coming months providing the basis for legislation that would be passed in the event of unified Democratic government in 2029. This would make the next few months crucial for stakeholders seeking to shape policy. Already, prominent figures in both the AI-skeptic and AI-friendly parts of the party are mobilizing to pull the debate in their preferred direction. The 2028 presidential candidate would have latitude to shift or even reopen the discussion, but potential contenders have been hesitant to share their positions without a party consensus.

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